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PART I




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also available for examination at the headquarters of that region. Individual copies of SIAPs may be purchased from the FAA Public Information Center, AIS-230, 800 Independence Avenue, SW, Washington, D.C. 20591 or from the applicable FAA regional office in accordance with the fee schedule prescribed in 49 CFR 7.85. This fee is payable in advance and may be paid by check, draft, or postal money order payable to the Treasurer of the United States. A weekly transmittal of all SIAP changes and additions may be obtained by subscription at an annual rate of $150.00 per annum from the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402. Additional copies mailed to the same address may be ordered for $30.00 each.

Since a situation exists that requires immediate adoption of this amendment, I find that further notice and public procedure hereon is impracticable and good cause exists for making it effective in less than 30 days.

In consideration of the foregoing, Part 97 of the Federal Aviation Regulations is amended as follows, effective on the dates specified:

1. Section 97.23 is amended by originating, amending, or canceling the following VOR-VOR/DME SIAPs, *effective August 21, 1975.*

Elizabeth City, NC—Coast Guard Air Base/Municipal Arpt., VOR Rwy 1, Amdt. 2.
Elizabeth City, NC—Coast Guard Air Base/Municipal Arpt., VOR Rwy 19, Amdt. 2.
Greenwood, MS—Greenwood-LeFlore Arpt., VOR Rwy 5, Amdt. 5.
LaPorte, IN—LaPorte Municipal Arpt., VOR-A, Orig.
Rochelle, IL—Rochelle Municipal Arpt., VOR-A, Amdt. 2.

* * * *effective August 7, 1975:*

Boise, ID—Boise Air Terminal, VOR/DME Rwys 10L and R, Amdt. 1.
Boise, ID—Boise Air Terminal, VOR Rwys 10L and R, Amdt. 16.
Boise, ID—Boise Air Terminal, VORTAC Rwy 28L, Amdt. 5.

* * * *effective July 24, 1975:*

Westerly, RI—Westerly State Arpt., VOR-A, Amdt. 5.

* * * *effective July 17, 1975:*

Fort Dodge, IA—Fort Dodge Municipal Arpt., VOR Rwy 12, Amdt. 9.
Fort Dodge, IA—Fort Dodge Municipal Arpt., VORTAC Rwy 30, Amdt. 5.
Marion, OH—Marion Municipal Arpt., VOR Rwy 24, Orig.

2. Section 97.27 is amended by originating, amending, or canceling the following NDB/ADF SIAPs, *effective August 21, 9175.*

Cozad, NE—Cozad Municipal Arpt., NDB Rwy 13, Orig.
Elizabeth City, NC—Coast Guard Air Base/Municipal Arpt., NDB-A, Amdt. 3.

* * * *effective August 14, 1975:*

Nome, AK—Nome Arpt., NDB Rwy 27, Amdt. 3.

* * * *effective August 7, 1975:*

Boise, ID—Boise Air Terminal, NDB Rwys 10L and R. Amdt. 23.

* * * *effective July 17, 1975:*

Fort Dodge, IA—Fort Dodge Municipal Arpt., NDB Rwy 6, Orig.
Marion, OH—Marion Municipal Arpt., NDB Rwy 12, Amdt. 4.

3. Section 97.29 is amended by originating, amending, or canceling the following ILS SIAPs, *effective July 27, 1975.*

Latrobe, PA—Latrobe Arpt., ILS Rwy 23, Amdt. 7.

CORRECTION

In Docket Nr. 14708, Amendment 974, to Part 97 of the Federal Aviation Regulations published in the FEDERAL REGISTER dated June 26, 1975, on page 27016, under § 97.25, effective August 14, 1975—Change effective date of Rock Springs, WY, Rock Springs-Sweetwater County Arpt., LOC/DME (BC) Rwy 7, Original, to October 9, 1975.

(Secs. 307, 313, 601, 1110, Federal Aviation Act of 1958; 49 U.S.C. 1438, 1354, 1421, 1510; sec. 6(c) Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Washington, D.C., on July 3, 1975.

JAMES M. VINES,
*Chief,*
*Aircraft Programs Division.*

NOTE: Incorporation by reference provisions in §§ 97.10 and 97.20 (35 FR 5610) approved by the Director of the Federal Register on May 12, 1969.

[FR Doc.75-17860 Filed 7-9-75;8:45 am]

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## Title 20—Employee's Benefits

## CHAPTER III—SOCIAL SECURITY ADMINISTRATION, DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

[Regs. No. 4, further amended]

## PART 404—FEDERAL OLD-AGE, SURVIVORS, AND DISABILITY INSURANCE (1950—)

### Subpart K—Employment—Wages—Self-Employment Income

On February 6, 1975, there was published in the FEDERAL REGISTER (40 FR 5540) a notice of proposed rulemaking with proposed amendments to Subpart K of Regulations No. 4 (20 CFR Part 404), regarding implementation of section 10 of P.L. 93-368, enacted August 7, 1974. The proposed amendments reflect the provisions of section 10 of Pub. L. 93-368, enacted August 7, 1974, which provide for the exclusion from social security coverage of farm rental income received by a landowner or tenant who turns over the management of his farm to an agent and does not himself materially participate in the farm operation.

Under present law, farm rental income is covered under social security if the rental arrangement provides that the landowner or tenant materially participate in the production of the agricultural or horticultural commodities on his land and if there is material participation by the landowner or tenant. In determining whether the landowner's or tenant's actions contribute in a material way to the production of the commodities raised on his farm, his own actions plus actions of his agent are considered. Actions by an agent are attributed to the farm landowner or tenant, so that if the agent participates in the management and operation of the farm, the farmowner or tenant is also deemed to be participating even though he does not personally participate.

A problem has arisen in the case of landowners who enter into an agreement with a professional farm management company or other person who has the responsibility to choose a tenant and to manage and supervise the farm operation. In such a situation, the landowner does not participate in the operation of the farm and views his income as investment income rather than income from farm self-employment.

Accordingly, the amendment provides that in such a situation the landowner would not be considered to participate in the operation of the farm. Therefore, his farm income would not count for social security purposes if he entered into an agreement with another person to manage or supervise the farm operation, including the selection of tenants, when there is in fact no participation on his part.

No adverse comments have been received. Accordingly, the proposed amendments are adopted without change as set forth below.

*Effective Date:* These amendments shall be effective July 10, 1975.

Dated: June 19, 1975.

(Catalog of Federal Domestic Assistance Program No. 13.803, Social Security—Retirement Insurance)

J. B. CARDWELL,
*Commissioner of Social Security.*

Approved: July 2, 1975.

CASPAR W. WEINBERGER,
*Secretary of Health, Education, and Welfare.*

Subpart K of Regulation No. 4 of the Social Security Administration, as amended (20 CFR Part 404), is further amended by revising paragraph (c)(5) and examples (5) and (6) in paragraph (c)(6) of § 404.1053 to read as follows:

**§ 404.1053 Rentals from real estate: material participation.**

* * * * *

(c) *Special rule for "includible farm rental income"* * * *

* * * * *

(5) *Employees or agents.* Any arrangement entered into by an employee or agent of an owner or tenant and another person is considered an arrangement entered into by the owner or tenant for purposes of satisfying the requirement set forth in paragraph (c)(2) of this section that the income must be derived under an arrangement between the owner or tenant and another person. For purposes of determining whether the arrangement satisfies the requirement set forth in paragraph (c)(3) of this section that the parties contemplate that the owner or tenant is to materially participate in the production or management of

production of a commodity: (i) for taxable years ending after 1955 and beginning before January 1, 1974, services performed by such an employee or agent are considered services performed by the owner or tenant in determining the extent to which the owner or tenant has participated in the production or management of production of a commodity; (ii) for taxable years beginning after December 31, 1973, the activities (including services) of such an employee or agent shall not be considered as the activities (including services) of the owner or tenant in determining the extent to which the owner or tenant has participated in the production or management of production of a commodity.

(6) *Examples* * * *

* * * * *

*Example 5.* J owned a farm several miles from the town in which he lived. He rented the farm to K under an arrangement which contemplated J's material participation in the management of production of wheat. J furnished one-half the seed and fertilizer and all the farm equipment and livestock. He employed H to perform all the services in advising, consulting, and inspecting which were contemplated by the arrangement, effective with taxable years beginning after December 31, 1973. J is not materially participating in the management of production of wheat by K. The work done by J's employee, H, is not attributable to J in determining the extent of J's participation. J's rental income from the arrangement is not to be included in computing his net earnings from self-employment.

*Example 6.* Assume the same facts as in the previous example except that J appointed the X Bank as his agent to enter into the rental arrangement with K and to perform the services which were contemplated by the arrangement, effective with taxable years beginning after December 31, 1973. J is not materially participating in the management of production of wheat by K because the work done by X Bank is not attributable to J in determining the extent of J's participation. J's rental income from the arrangement would not be included in computing his net earnings from self-employment.

* * * * *

(Secs. 205(a), 211(a)(1), and 1102 of the Social Security Act, as amended, 53 Stat. 1368, as amended, 64 Stat. 502, as amended, 49 Stat. 647, as amended; 42 U.S.C. 405(a), 411(a)(1), and 1302)

[FR Doc.75-17887 Filed 7-9-75;8:45 am]

## PART 404—FEDERAL OLD-AGE, SURVIVORS, AND DISABILITY INSURANCE

### Subpart L—Family Relationship

On February 4, 1975, there was published in the FEDERAL REGISTER (40 FR 5163), a notice of proposed rulemaking with a proposed amendment to Subpart L of Regulations No. 4 (Part 404 of title 20 of the Code of Federal Regulations). The proposed amendment provides that a child born out of wedlock to a living wage earner entitled to old-age insurance benefits or disability insurance benefits is a "child" of the wage earner for purposes of entitlement to child's insurance benefits if the wage earner was decreed by a court to be the child's father, or was ordered by a court to contribute to the child's support because the child is his or her son or daughter, or acknowledged in writing that the child is his or her son or daughter; or is shown to be the child's father by other satisfactory evidence and is living with the child or contributing to the child's support at the time the child's application is filed. Under present regulations, a child born out of wedlock to a living wage earner after the wage earner's entitlement to old-age or disability insurance benefits has begun, is precluded from being considered a "child" for social security purposes. The proposed amendment changes the regulations to conform with the U.S. Supreme Court's decision in *Jimenez* v. *Weinberger*, 417 U.S. 628 (1974), which declared the time requirements of section 216(h)(3)(B) of the Social Security Act to be unconstitutional. This change is effective with benefit payments for months beginning June 1974.

Interested parties were given 30 days within which to submit data, views, and arguments. None were received. Therefore, the proposed amendment is hereby adopted with a clarifying change with respect to the effective date and inclusion of the amendment as a new paragraph rather than as a revision of an existing paragraph, a change in form rather than in substance from the amendment published with a notice of proposed rulemaking. As thus revised, the amendment is set forth below.

Regulations No. 4 of the Social Security Administration, as amended (20 CFR Part 404), are further amended by adding paragraph (e) to § 404.1101 to read as follows:

## PART 404—FEDERAL OLD-AGE, SURVIVORS AND DISABILITY INSURANCE (1950–...)

### § 404.1101 Determination of Relationship.

Whether a claimant bears the necessary relationship for entitlement under title II of the Act, as wife, husband, widow, widower, child, or parent of the insured individual upon whose wages and self-employment income and application is based is determined as follows:

* * * * *

(e) If the application for child's benefits is filed in or after July 1965 and the claimant is the natural son or daughter of the insured individual but does not have the relationship of child to the insured individual under the criteria described in paragraph (a) or (c)(1) of this section, such child will nevertheless be deemed the child of such insured individual for purposes of child's benefits beginning for months no earlier than June 1974, if:

(1) In the case of an insured individual who is entitled to old-age insurance benefits and in the month before he became entitled to such benefits was not entitled to disability insurance benefits:

(i) Such insured individual has acknowledged in writing that the claimant is his son or daughter, or he has been decreed by a court to be the father of the claimant, or he has been ordered by a court to contribute to the support of the claimant because claimant is his son or daughter, or

(ii) Such insured individual is shown by satisfactory evidence to be the father of the claimant and is living with or contributing to the support of the claimant at the time such application for benefits is filed;

(2) In the case of an insured individual who is entitled to disability insurance benefits or who was entitled to such benefits in the months before the first month for which he was entitled to old-age insurance benefits:

(i) Such insured individual has acknowledged in writing that the claimant is his son or daughter, or he has been decreed by a court to be the father of the claimant, or he has been ordered by a court to contribute to the support of the claimant because the claimant was his son or daughter, or

(ii) Such insured individual is shown by satisfactory evidence to be the father of the claimant and is living with or contributing to the support of the claimant at the time such application for benefits is filed;

(3) In the case of a deceased insured individual:

(i) Such insured individual has acknowledged in writing that the claimant is his son or daughter, or he had been decreed by a court to be the father of the claimant, or he had been ordered by a court to contribute to the support of the claimant because the claimant was his son or daughter, and such acknowledgement, court decree, or court order was made before the death of such insured individual, or

(ii) Such insured individual is shown by satisfactory evidence to have been the father of the claimant and that he was living with or contributing to the support of the claimant at the time he died.

The term "insured individual" used in this paragraph (e) refers to the child's mother or father except where a provision refers only to the "father."

(Secs. 205, 206, and 1102; 53 Stat. 1368, as amended; 68 Stat. 1082, as amended; 49 Stat. 647, as amended; (42 U.S.C. 405, 406 and 1302))

(Catalog of Federal Domestic Assistance Program No. 13.803, Social Security—Retirement Insurance)

*Effective date.* The amendment is effective with benefit payments for months beginning June 1974.

Dated: June 19, 1975.

J. B. CARDWELL,
*Commissioner of Social Security.*

Approved: July 2, 1975.

CASPAR W. WEINBERGER,
*Secretary of Health, Education, and Welfare.*

[FR Doc.75-17888 Filed 7-9-75;8:45 am]